

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:

BRIAN BONILLA,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. RICARDO BOCACHICA, Det.
JOSE PEINAN, U.C.O. Shield C0077 name presently
unknown and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
offending officers,

Defendants.

SUMMONS

Plaintiff designates
BRONX County as the
place of trialThe basis of venue is:
CPLR 504 (3)

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
June 3, 2013
By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007Det. Richardo Bocachica, Shield #000919, Det. Jose Peinan, Shield #002276 and U.C.O. Shield C0077
NARCBX, 1 Police Plaza, New York NY 10038RECEIVED
2013 JUN -4 AM 11:11
COUNTY CLERK
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRIAN BONILLA,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. RICARDO BOCACHICA, Det.
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Defendants.
-----X

Index No.:

VERIFIED COMPLAINT

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF BRIAN BONILLA

1. At the time of the commencement of this action, Plaintiff BRIAN BONILLA was
and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about April 21, 2012, Det. RICARDO BOCACHICA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

7. That on and about April 21, 2012, at approximately 9:30 A.M., Det. RICARDO BOCACHICA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

8. That on and about April 21, 2012, Det. JOSE PEINAN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

9. That on and about April 21, 2012, at approximately 9:30 A.M., Det. JOSE PEINAN was working and acting within the scope of his employment as a Police Officer, and under the color of law.

10. That on and about April 21, 2012, U.C.O. Shield C0077, whose name is presently unknown to plaintiff but known to defendant CITY OF NEW YORK, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

11. That on and about April 21, 2012, at approximately 9:30 A.M., U.C.O. Shield C007 was working and acting within the scope of his employment as a Police Officer, and under the color of law.

12. That on and about April 21, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

13. That on and about April 21, 2012 at approximately 9:30 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

14. That on or about April 21, 2012 at approximately 9:30 A.M., at or near the front of 218 St. Anns Avenue, Bronx, New York, the plaintiff BRIAN BONILLA was improperly arrested, and confined without warrant, proper authority or justification, having no reason in law or in fact to arrest or confine BRIAN BONILLA.

15. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

16. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

17. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement thereby causing freight, shock, emotional distress and physical consequences.

18. That the defendants Det. RICARDO BOCACHICA, Det. JOSE PEINAN, U.C.O. Shield C0077 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

19. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

20. That all criminal charges, which were brought against plaintiff under Docket No. 2012BX023953 and Case No. 23953C-2012, regarding the incidents of April 21, 2012

were dismissed by Hon. Seth Marvin an Acting Justice of the Bronx Supreme Court, Criminal Division on April 27, 2012.

21. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions.

22. As a result of the malicious prosecution, plaintiff was deprived of liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately seven days.

23. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of targeting minority residents, and thereafter arresting these minority persons, without any probable cause or reasonable basis to do so or upon the fabrication of rational and / or evidence for arrest, and for nefarious, unlawful reasons, including to satisfy arrest quotas, without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers, and by asserting that innocent individuals in proximity to contraband substances are in

possession of said substances when they are clearly possessed by others, yet arrested nevertheless and or for the sale of said substances of which they were never in possession of and did not sell.

24. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and followed by the conducting of invasive searches in public and while in custody when there is no reasonable basis to conduct such searches and without individualized reasonable suspicion of the secreting of evidence and specific, articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence inside a body cavity, are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

25. Said policy, practice and/or procedure is evidenced by officers of the New York City Police Department, and especially and specifically officers of the NBBX and 44th Precinct routinely engage in the use of practices such as illegal, unlawful arrest and unnecessary and intrusive searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, and testify falsely so often that such

conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to plaintiff herein.

26. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that narcotics officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely engage in arrests without a legal reason to do so and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, often referred to as productivity goals, lead to a practice and procedure of, for

instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "it's a drug raid, we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL, an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30

A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNEY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

27. Moreover patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated specifically by Det. RICARDO BOCACHICA when he wrongfully arrested numerous other innocent persons under similar circumstances, including, but not limited to, MILAGROS CRUZ on March 25, 2008 as well as ARNALDO LAUREANO and JOSE GONZALEZ on November 12, 2010 and BRIAN BONILLA on April 21, 2012.

28. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, on April 17, 2009 EDGAR TORRES and JASON RIVERA were improperly strip searched by officers of the 44th

Precinct ; on February 16, 2010 DANIEL TORRES was improperly strip searched by officers of the 44th Precinct; on April 14, 2010 JUAN QUINONES was improperly strip searched by officers of the 44th Precinct; on June 17, 2010 JUSTIN JACKSON was improperly strip searched by officers of the 44th Precinct; DANIEL AGUERO was improperly strip searched by officers of the 44th Precinct on February 2, 2011; On January 14, 2011, EDDY PEREZ was improperly strip searched by officers of the 44th Precinct; on February 9, 2011 DANIEL AGUERA was improperly strip searched by officers of the 44th Precinct, and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

29. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

30. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the

plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

31. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

32. That as a result of the foregoing, the plaintiff BRIAN BONILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRIAN BONILLA

33. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.

34. That on or about June 6, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the

name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on July 27, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

35. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

36. That on or about April 21, 2012 at approximately 9:30 A.M., at or near the front of 218 St. Anns Avenue, Bronx, New York, the plaintiff BRIAN BONILLA was improperly arrested, and confined without warrant, proper authority or justification, having no reason in law or in fact to arrest or confine BRIAN BONILLA.

37. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

38. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

39. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

40. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

41. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

42. That as a result of the foregoing, the plaintiff BRIAN BONILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF BRIAN BONILLA

43. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 42 as though more fully set forth herein.

44. That following the aforesaid arrest, at the 44th Precinct, 2 East 169th Street, Bronx New York, the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff, including a strip search without individualized articulable reasonable suspicion of the secreting of evidence underneath his clothes or within a bodily cavity.

45. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

47. That as a result of the foregoing, the plaintiff BRIAN BONILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRIAN BONILLA

48. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 47 as though more fully set forth herein.

49. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the plaintiff without any basis in law or fact.

50. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

51. That the defendants Det. RICARDO BOCACHICA, Det. JOSE PEINAN, U.C.O. Shield C0077 and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and testified against plaintiff t thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

52. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

53. That all criminal charges, which were brought against plaintiff under Docket No. 2012BX023953 and Case No. 23953C-2012, regarding the incidents of April 21, 2012 were dismissed by Hon. Seth Marvin an Acting Justice of the Bronx Supreme Court, Criminal Division on April 27, 2012.

54. As a result of the malicious prosecution, plaintiff was deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court

appearances to defend his liberty against these unjust charges over a period of approximately six days.

55. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

56. That this cause of action falls within one or more of the exceptions as set forth in PLR Section 1602.

57. That as a result of the foregoing, the Plaintiff BRIAN BONILLA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRIAN BONILLA

58. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 57 as though more fully set forth herein.

59. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the

proper conducting of the arrest of individuals, and in the utilization of unreasonable and invasive search procedures and failed to supervise its employees, agents, and / or servants to prevent and/ or in causing unlawful arrests to satisfy arrest quotas.

61. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff BRIAN BONILLA was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and

attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
June 3, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
BRIAN BONILLA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Richardo Bocachicha, Shield #000919, Det. Jose Peinan, Shield #002276 and U.C.O. Shield C0077, NARCBBX, 1 Police Plaza, New York NY 10038

PLAINTIFF'S VERIFICATION

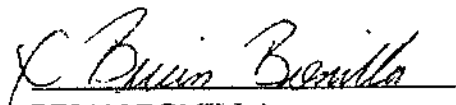
BRIAN BONILLA affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


BRIAN BONILLA